

# Shri Soumitra Ghosh vs Smt Shilpi Ghosh on 10 November, 2017

**Equivalent citations: AIRONLINE 2018 TRI 136**

**Bench: T Vaiphei, S. Talapatra**

THE HIGH COURT OF TRIPURA  
AGARTALA  
FA No.9/2015

Shri Soumitra Ghosh,  
S/o Late Nirad Ranjan Ghosh,  
10, Harish Thakur Road, Krishnanagar,  
P.O. - Agartala, P.S. West Agartala,  
Sub-Division - Agartala,  
District - West Tripura, PIN - 799001.

..... Appellant.

-: Versus :-

Smt Shilpi Ghosh,  
W/o Shri Soumitra Ghosh,  
C/o Late Nepal Chandra Ghosh,  
resident of Amlapara,  
P.O., P.S & Sub-Division - Belonia,  
District - South Tripura.

..... Respondent.

\_B\_E\_F\_O\_R\_E\_ HON'BLE THE CHIEF JUSTICE MR. T VAIPHEI THE HON'BLE MR. JUSTICE S. TALAPATRA Counsel for the appellant : Mr. A K Bhowmik Sr. Advocate, Mr. Raju Datta, Advocate, Ms. A Banik, Advocate.

Counsel for the respondent : Mr. A Acharjee, Advocate.

Date of hearing : 01-11-2017.

Date of judgment & order : 10-11-2017

JUDGMENT & ORDER

[T. Vaiphei, C.J.]

In this appeal, the appellant is aggrieved by the judgment dated 12-9- 2013 passed by the learned Judge, Family Court, Agartala in Title Suit(Divorce) No.150 of 2011 refusing to pass a decree of divorce against the respondent.

2. The facts giving rise to this appeal may be briefly noticed at the outset. The appellant and the respondent solemnised their marriage on 24-7-2002 in accordance with Hindu rites and customs. The case of the appellant is that their marriage arranged on negotiation which was earlier advertised in the matrimonial column of the local daily "Dainik Sambad" without prior meeting by them. At the time of the marriage ceremony, the appellant noticed some abnormal behaviour of the respondent. Apart from having abnormal behaviour, she was not willing to co-habit with him and was incapable of discharging her household works. He accordingly informed the parents and brother of the respondent, Sri Tapas Ghosh, but they assured him that she would get well if proper treatment was given to her. On 14-8-2002, i.e. within 21 days of their marriage, her brother along with her aunt, Smt Rina Ghosh, took her to a psychiatrist, Dr. Bhubaneswar Roy where her brother stated that she had suffering from mental unsoundness of mind since 1997 and was prescribed some medicines. On the advice of her father, she was taken to her parental house by her brother. The appellant thereafter instituted Title Suit (Nullity) No.107 of 2002. The suit ultimately got transferred to the Court of the Additional District Judge, Belonia for trial. In that suit, the respondent alleged that she was tortured for demand of dowry which compelled her to leave her marital home. The trial court dismissed the suit by the judgment dated 21-1- 2005 which was carried to appeal before this Court, which again by the judgment dated 15-5-2010 dismissed the appeal by holding that the respondent was completely of a sound mind.

3. It would appear that from 24-7-2002 to 21-1-2003, the respondent had stayed in her marital home only for 27 days. On 11-7-2005, the said Tapash Ghosh filed a complaint before the learned Sub-Divisional Judicial Magistrate, Belonia against the appellant, his mother and his two aunts for the alleged commission of the offence punishable U/s 498-A IPC. The learned Magistrate forwarded the complaint to Belonia Police Station for investigation U/s 156(3) CrPC. The IO of the case thereafter submitted the charge sheet before the learned Magistrate on 8-6-2006, which was registered as GR No.169 of 2005. The appellant managed to obtain an anticipatory bail from this Court. In the meantime, the appellant, his mother and his two aunts approached this Court U/s 482 CrPC for quashing the criminal proceedings against them; the case is still pending for disposal.

4. Having failed to obtain a decree of divorce on the ground of mental unsoundness of mind, the appellant again filed the instant suit in the year 2011 for a decree of divorce on the ground of cruelty. A number of grounds were pleaded by the appellant, which, according to him amounts to mental cruelty, warranting a decree of divorce. In particular, the respondent managed to live with him only for twenty days and has been refusing to live with him since 21-1-2003; she intentionally refused to consummate their marriage or co-habit with him thereby preventing them from procreating a child; she lodged a criminal complaint against the appellant, his mother and his two aunts before the learned Sub-Divisional Judicial Magistrate/Belonia on 11-7- 2005 U/s 498-A IPC which ultimately resulted in the filing of charge-sheet by the police vide GR No.169/05. The suit was again dismissed by the learned Judge, Family Judge, West Agartala by the impugned judgment, which is under challenge in this appeal.

5. The suit was contested by the respondent, who, in her written objection, stated that the appellant abandoned her within three months of their marriage and instituted the earlier suit for annulling their marriage on the ground of her mental illness; the suit was dismissed. The appeal filed by him was also dismissed as he could not prove her mental illness. Not satisfied with that he then instituted the instant suit on the new ground of cruelty and when the suit was dismissed, he again preferred this appeal. According to her, she time and again approached the appellant at his house and pleaded with him to reconstitute their conjugal life so that they could live together harmoniously, but he all the times chased her away. In spite of the humiliation and torture she received from the appellant, the respondent still wants to revive their conjugal life. She never did anything to humiliate the appellant, and he cannot take advantage of his own wrong. She, therefore, submits that the suit is liable to be dismissed by directing the appellant to reconstitute her conjugal rights.

6. We have carefully gone through the impugned judgment and lower court record. The main contention of Mr. AK Bhowmik, the learned senior counsel for the appellant is simple, which is that the facts and circumstances brought on record clearly establish a case of mental cruelty committed by the respondent upon the appellant. Once it is shown that a criminal case was filed by the respondent against her husband and his family members and she has been living separately from the appellant for the last 15 long years, the inference is inevitable and the conclusion inescapable that there is no possibility of restoring normal conjugal life to the parties. He, therefore, strenuously urges that the impugned judgment is unsustainable in law and is liable to be set aside. He presses into service the decision of this Court and that of the Gauhati High Court in *Dibyendu Das v. Nupur Deb (Das)*, (2014) 1 TLR 1018 and *Bhulu Rani Dey (Das) v. Rabi Dey*, AIR 2012 Gauhati 128 respectively to support his contentions. On the other hand, Mr. A. Acharjee, the learned counsel for the respondent, supports the impugned judgment and submits that the suit is mala fide and is filed by the appellant after he failed to obtain a decree of divorce on the ground of unsoundness of mind of the respondent, he cannot now file another suit for dissolution of their marriage on the ground of mental cruelty. He, therefore, submits that this appeal not only not maintainable but is also without merit and is liable to be dismissed.

7. To appreciate the concept of the term "mental cruelty", we will refer to the recent decision of the Apex Court in *Narendra v. K. Meena*, (2016) 9 SCC

455. That was a case where the appellant husband had married the respondent wife on 26-2-1992. From the wedlock, a female child named Ranjitha was born on 13-11-1993. The case of the appellant was that the respondent did not live happily with the appellant even for a month after the marriage. The reason for filing the divorce petition was that the respondent wife had become cruel because of her highly suspicious nature and she used to level absolutely frivolous but serious allegations against him regarding his character and more particularly about his extra-marital relationship. The behaviour of the respondent wife made life of the appellant husband miserable and it became impossible for the appellant to stay with the respondent for the aforesaid reasons. Moreover, the respondent wanted the appellant to leave his parents and other family members and to get separated from them so that the respondent can live independently; and in that event it would become more tortuous for the appellant to stay only with the respondent wife with her such nature and behavior.

8. In that case, the main ground for divorce advanced by the husband was cruelty, as serious allegations were levelled about the moral character of the appellant to the effect that he was having an extra-marital affair with a maid, named Kamla. Another important allegation was that the respondent would very often threaten the appellant that she would commit suicide. In fact, on 2-7-1995, she picked up a quarrel with the appellant, went to the bathroom, locked the door from inside and poured kerosene on her body and attempted to commit suicide. On getting smell of kerosene coming from the bathroom, the appellant, his elder brother and some of the neighbours broke open the door of the bathroom and prevented the respondent wife from committing suicide. The aforesaid facts were found to be sufficient by the learned Family Court for granting the appellant a decree of divorce dated 17-11-2001, after considering the evidence adduced by both the parties. Being aggrieved by the judgment and decree of divorce dated 17-11-2001, the respondent wife had filed Miscellaneous First Appeal No.171 of 2002(FC), which has been allowed by the High Court on 8-3-2006, whereby the decree of divorce dated 17-11-2001 has been set aside. Being aggrieved by the judgment and order passed by the High Court, the appellant has filed civil appeal before the Apex Court. The Apex Court applying the ratio of *Vijaykumar Ramchandra Bhate v. Neela Vijaykumar Bhate*, (2003) 6 SCC 334 held that unsubstantiated allegations levelled by the wife and the threats and attempt to commit suicide by her amounted to mental cruelty and the marriage, therefore, deserved to be dissolved by a decree of divorce on the ground stated in Section 13(1)(i-a) of the Hindu Marriage Act, 1956. This is what the Apex Court said:

"19. Taking an overall view of the entire evidence and the judgment delivered by the trial court, we firmly believe that there was no need to take a different view than the one taken by the trial court. The behaviour of the respondent wife appears to be terrifying and horrible. One would find it difficult to live with such a person with tranquility and peace of mind. Such torture would adversely affect the life of the husband. It is also not in dispute that the respondent wife had left the matrimonial house on 12-7-1995 i.e. more than 20 years back. Though not on record, the learned counsel submitted that till today, the respondent wife is not staying with the appellant. The daughter of the appellant and the respondent has also grown up and according to the learned counsel, she is working in an IT company. We have no reason to disbelieve the aforesaid facts because with the passage of time, the daughter must have grown up and the separation of the appellant and the wife must have also become normal for her and therefore, at this juncture it would not be proper to bring them together, especially when the appellant husband was treated so cruelly by the respondent wife."

9. In the instant case also, the respondent filed a criminal complaint case being GR No.169/2005 U/s 498-A IPC filed against the appellant and his parents, refused to consummate her marriage with him or co-habitat with him or procreate a child and has been living separately from him for the last 15 years or so without any chance of reconciliation. The conduct and behavior of the respondent are of such quality, magnitude and consequence as to cause mental pain, agony and suffering amounting to the reformulated concept of cruelty in matrimonial law causing profound and lasting disruption and the husband to feel deeply hurt and reasonably apprehend that it would be like sleeping with an enemy every night. It will in most likelihood be difficult to live with such person

with tranquility and peace of mind. She has already left her matrimonial house fifteen years ago and till today, she is not staying with the appellant. In these circumstances, the ends of justice will be served by recognizing the reality and allow them to live separately forever. You cannot simply bring them together at this stage with the unrealistic hope that they will live happily ever after; you can take a horse to water but cannot make it drink.

10. For the reason stated in the foregoing, this appeal succeeds. The impugned judgment of the trial court be and is hereby set aside. The marriage between the appellant and the respondent stands dissolved. The parties are, however, directed to bear their respective costs. Let a decree be prepared accordingly. Transmit the LC record.

JUDGE

CHIEF JUSTICE

Sukhendu